

Court No. - 6

Case :- WRIT - C No. - 13942 of 2023

Petitioner :- Executive Engineer Electricity And 2 Others

Respondent :- Mahan Pratap Singh And Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Piyush Agrawal,J.

Heard learned counsel for the petitioner and the learned standing counsel for the respondents.

Learned counsel for the petitioners submits that the Permanent Lok Adalat has passed the impugned order dated 3.2.2021 without considering Section 56(2) Electricity Act, 2003 and Clause 6.5 of U.P. Electricity Supply Code, 2005.

Matter requires consideration.

Issue notice.

Notice on behalf of respondent nos. 1 has been accepted by the office of the learned chief standing counsel therefore, notice need not be issued to respondent no. 1. Let notice be issued to respondent no. 2 by registered post returnable at an early date. Steps be taken within two weeks.

The respondents are directed to file counter affidavit within six weeks. Rejoinder affidavit, if any, be filed within two weeks thereafter.

List thereafter.

Order Date :- 26.4.2023

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Hon'ble Piyush Agrawal,J.

(Re:Civil Misc. Correction Application No. 2 of 2020:)

Heard learned counsel for the applicant/petitioner.

In the fifth paragraph; first line of the order dated 26.4.2023, the words 'respondent no.2' should be read as 'respondent no.1'; fourth line of the order the words 'respondent no.2' should be read as 'respondent no.1' and in the fifth line of the order words 'respondent no.1' should be read as 'respondent no.2'.

The order is, thus, corrected.

The correction application is allowed.

Order Date :- 3.5.2023

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